



INDIAN POLITY

- **TRIBUNALS**
- **RIGHTS AND LIABILITIES OF THE GOVERNMENT**

MODULE – 112



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- The original Constitution did not contain provisions with respect to tribunals.
- The 42nd Amendment Act of 1976 added a new **Part XIV-A** to the Constitution.
- This part is entitled as 'Tribunals' and consists of only two **Articles**—**Article 323 A** dealing with **administrative tribunals** and **Article 323 B** dealing with tribunals for **other matters**.

ADMINISTRATIVE TRIBUNALS



1 Article 323 A empowers the Parliament to provide for the establishment of administrative tribunals for the adjudication of disputes relating to recruitment and conditions of service of persons appointed to public services of the Centre, the states, local bodies, public corporations and other public authorities.

2 In other words, Article 323 A enables the Parliament to take out the adjudication of disputes relating to service matters from the civil courts and the high courts and place it before the administrative tribunals.

TRIBUNALS

ADMINISTRATIVE TRIBUNALS



3 In pursuance of Article 323 A, the Parliament has passed the **Administrative Tribunals Act in 1985.**

4 The act authorises the Central government to establish one Central administrative tribunal and the state administrative tribunals.

This act opened a new chapter in the sphere of providing speedy and inexpensive justice to the aggrieved public servants.

TRIBUNALS

ADMINISTRATIVE TRIBUNALS

I. CENTRAL ADMINISTRATIVE TRIBUNAL (CAT)

The Central Administrative Tribunal (CAT) was set up in 1985 with the principal bench at Delhi and additional benches in different states.



1

Jurisdiction:

- The CAT exercises **original jurisdiction** in relation to recruitment and all service matters of public servants covered by it. Its jurisdiction extends to the all-India services, the Central civil services, civil posts under the Centre and civilian employees of defence services.
- However, the **members of the defence forces, officers and servants of the Supreme Court and the secretarial staff of the Parliament** are not covered by it.

TRIBUNALS

ADMINISTRATIVE TRIBUNALS

I. CENTRAL ADMINISTRATIVE TRIBUNAL (CAT)



2

Composition:

- The CAT is a multi-member body consisting of a chairman and members.
- With the amendment in Administrative Tribunals Act, 1985 in 2006, the members have been given the status of judges of High Courts.
- They are drawn from both judicial and administrative streams and are appointed by the president.
- They hold office for a term of five years or until they attain the age of 65 years, in case of chairman and 62 years in case of members, whichever is earlier.

TRIBUNALS

ADMINISTRATIVE TRIBUNALS

I. CENTRAL ADMINISTRATIVE TRIBUNAL (CAT)



3

Appointment procedure:

- The appointment of Members in CAT is made on the basis of recommendations of a high-powered selection committee chaired by a **Sitting Judge of Supreme Court** who is nominated by the **Chief Justice of India**.
- After obtaining the concurrence of Chief Justice of India, appointments are made with the approval of **Appointments Committee of the Cabinet (ACC)**.

TRIBUNALS

ADMINISTRATIVE TRIBUNALS

I. CENTRAL ADMINISTRATIVE TRIBUNAL (CAT)



4

Judicial process:

- The CAT is not bound by the procedure laid down in the Civil Procedure Code of 1908. It is guided by the principles of natural justice.
- These principles keep the CAT flexible in approach. Only a nominal fee of 50 is to be paid by the applicant.
- The applicant may appear either in person or through a lawyer.

TRIBUNALS

ADMINISTRATIVE TRIBUNALS

I. CENTRAL ADMINISTRATIVE TRIBUNAL (CAT)

Consequently, now it is not possible for an aggrieved public servant to approach the Supreme Court directly against an order of the CAT, without first going to the concerned high court.

5 Appeals of the Tribunal:

- Originally, appeals against the orders of the CAT could be made only in the Supreme Court and not in the high courts.
- However, in the **Chandra Kumar case** (1997), the Supreme Court declared this restriction on the jurisdiction of the high courts as unconstitutional, holding that judicial review is a part of the basic structure of the Constitution.
- It laid down that appeals against the orders of the CAT shall lie before the division bench of the concerned high court.

TRIBUNALS

ADMINISTRATIVE TRIBUNALS

II. STATE ADMINISTRATIVE TRIBUNALS



- 1 The Administrative Tribunals Act of 1985 empowers the Central government to establish the State Administrative Tribunals (SATs) on specific request of the concerned state governments.
- 2 Like the CAT, the SATs exercise original jurisdiction in relation to recruitment and all service matters of state government employees.

TRIBUNALS

ADMINISTRATIVE TRIBUNALS

II. STATE ADMINISTRATIVE TRIBUNALS



3 The chairman and members of the SATs are appointed by the **president** after consultation with the governor of the state concerned.

4 The act also makes a provision for setting up of **joint administrative tribunal** (JAT) for two or more states. A JAT exercises all the jurisdiction and powers exercisable by the administrative tribunals for such states.

5 The chairman and members of a JAT are appointed by the president after consultation with the governors of the concerned states.

TRIBUNALS

TRIBUNALS FOR OTHER MATTERS



Under Article 323 B, the Parliament and the state legislatures are authorised to provide for the establishment of tribunals for the adjudication of disputes relating to the following matters:

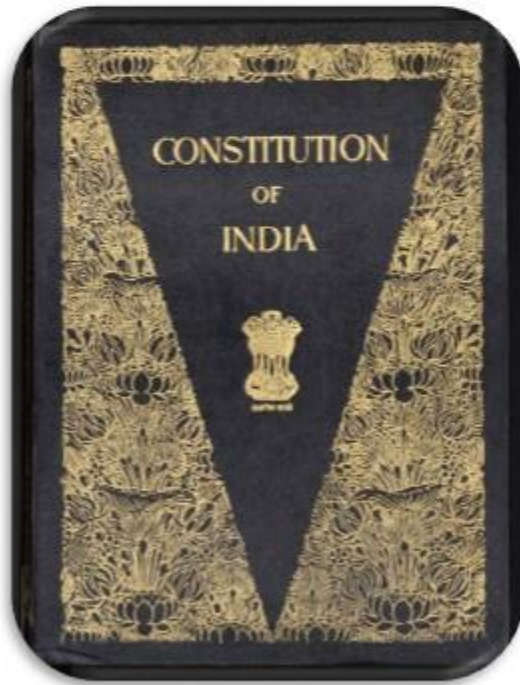
- a) Taxation
- b) Foreign exchange, import and export
- c) Industrial and labour
- d) Land reforms
- e) Ceiling on urban property
- f) Elections to Parliament and state legislatures
- g) Food stuffs
- h) Rent and tenancy rights

DIFFERENCE BETWEEN ADMINISTRATIVE TRIBUNALS UNDER ARTICLE 323 A AND 323 B

323 A	323 B
Tribunals established for public service matters only.	Tribunals established for other matters also as mentioned above.
Established only by the Parliament	Both by Parliament and State Legislatures
Only one tribunal for the Centre and one for each state or two or more states may be established. There is no question of hierarchy of tribunals	Whereas under Article 323 B a hierarchy of tribunals may be created.

Articles 294 to 300 in Part XII of the Constitution deal with the property, contracts, rights, liabilities, obligations and suits of the Union and the states.

PROPERTY OF THE UNION AND THE STATES



1

Succession:

All property and assets that were vested in the Dominion of India or a province or an Indian princely state, before the commencement of the present Constitution, became vested in the Union or the corresponding state.

RIGHTS AND LIABILITIES OF THE GOVERNMENT

PROPERTY OF THE UNION AND THE STATES

Escheat	➤ Death of a person intestate without any heir
Lapse	➤ Termination of rights through disuse or failure to follow appropriate procedures
Bona Vacantia	➤ Property found without any owner



2

Escheat, Lapse and Bona Vacantia:

Any property in India that would have accrued to **King of England or ruler of Indian state** by escheat, lapse or bona vacantia for want of a rightful owner, would now vest in the state if the property is situated there, and in the Union, in any other case. In all these three cases, the **property accrues to the government** as there is no rightful owner.

PROPERTY OF THE UNION AND THE STATES



3

Sea-Wealth:

All lands, minerals and other things of value under the waters of the ocean within the territorial waters of India, the continental shelf of India and the exclusive economic zone of India vests in the Union.

4

Acquisition under Executive Power:

The Union or a state can acquire, hold and dispose property under the exercise of its executive power.

PROPERTY OF THE UNION AND THE STATES



— PARLIAMENT OF INDIA —

5

Compulsory Acquisition by Law:

- The Parliament as well as the state legislatures are empowered to make laws for the compulsory acquisition and requisitioning of private property by the governments.
- Further, the 44th Amendment Act (1978) has also **abolished the constitutional obligation to pay compensation** in this regard except in two cases:
 - a) when the government acquires the property of a **minority educational** institution; and
 - b) when the government acquires the **land held by a person under his personal cultivation** and the land is within the statutory ceiling limits.

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